

cognitive data are not regarded as presentations of information in the sense of Art. 52(2)(d) EPC (T. 1194/97; Guidelines G-II, 3.7 – March 2022 version).

In T. 1194/97 (OJ 2000, 525) the board held that a record carrier characterised by having functional data recorded thereon is not a presentation of information as such and hence not excluded from patentability by Art. 52(2)(d) and (3) EPC 1973. In this context functional data includes a data structure defined in terms (here coded picture line synchronisations, line numbers, and addresses) which inherently comprise the technical features of the system (here read device plus record carrier) in which the record carrier is operative (extending T. 163/85, OJ 1990, 379). In order to lend additional support to its view in relation to a data structure product, the board also referred to decision T. 1173/97 (OJ 1999, 609) and, in particular, to the observation made in that decision at point 9.4 of the Reasons to the effect that the predetermined potential technical effect of a program recorded on a carrier could endow such a product with technical character sufficient to overcome the exclusions under Art. 52(2) and (3) EPC 1973 (see also T. 858/02).

In T. 1749/06 the board agreed with the finding of T. 1194/97. Presentation of information arises when "what is displayed" is claimed without specifying "how it is displayed". Claim 1 comprised the feature of an icon formed of dark and white stripes having thus a three-dimensional effect, but did not comprise the icon's cognitive content, i.e. its specific shape. The latter feature, i.e. the icon representing e.g. a butterfly, was a presentation of information, but not the former. The board found for these reasons that the features of the characterizing portion of claim 1 did not fall under the category of presentation of information within the meaning of Art. 52(2)(d) EPC.

In T. 125/04 the board was of the opinion that, in general, the task of designing diagrams was non-technical (see T. 244/00 of 15 November 2001). This was so even if the diagrams arguably conveyed information in a way which a viewer might intuitively regard as particularly appealing, lucid or logical.

In T. 599/93 a configuration for simultaneously displaying several images on one (computer) screen was claimed. The screen was divided into four sections, for example by means of one horizontal and one vertical demarcation line. The board was of the view that imparting information on events in a screen window by changing the colour of the relevant surface of the setting mark was not of a technical nature (no information was given, for example, on the operating status of the claimed configuration), but merely drew the user's attention to particular contents of the relevant images and thus served to present information within the meaning of Art. 52(2)(d) EPC 1973 (T. 1704/06).

In T. 1086/07 the board considered that, in general, the idea of displaying and placing an indicator at a position to identify a location has no technical character. It is a presentation of information, namely the results of the summarising process, and has no interaction with the possibly technical function of producing it. A similar conclusion was reached in decision T. 603/89 (OJ 1992, 230) in connection with a kind of template that displayed numbers on a card to represent notes on a keyboard instrument. The board noted that although the jurisprudence on Art. 52(2) EPC 1973 was somewhat different at the time, the judgment of technical character was essentially the same.

In T. 528/07 the appellant cited several decisions of the boards of appeal in order to demonstrate that the display of data can have technical character. The board found that **two different interpretations** of decision T. 115/85 existed in the jurisprudence: either the visual indications must concern technical conditions of the system in order to relate to a technical problem (T. 833/91), or they may also concern non-technical conditions (T. 717/05). The board in the case at issue followed the more restrictive approach according to which only technical conditions of a system can be taken into account. This line has also been taken in other decisions of the boards of appeal (see e.g. T. 790/92; T. 953/94; T. 1161/04; T. 1567/05; T. 756/06). Moreover, the clear character of this approach as an exception appears to be more consistent with the exclusion of "presentations of information" pursuant to Art. 52(2)(d) EPC.

In T. 1073/06 the application related to generating a display of a **simulation model** including objects linked by relationships, for instance a proportional relationship. The appellant had argued that an objective technical problem could be seen in improving the ease with which a user can construct such a simulation model, the claimed solution avoiding the "drilling down" required in the prior art to understand the relationships between the objects in the simulation model.

The board judged, however, that an improvement in the comprehension of a model is a purely mental effect, so that the problem solved was not seen as being technical. Further, the solution was also not seen as having any technical implications beyond, possibly, routine implementation details, being simply a choice of where and in what form in a process of visualisation of a model to display certain information, i.e. an issue of "presentations of information", as mentioned in Art. 52(2)(d) EPC. On its broadest interpretation, the simulation model, of which the relationship conditions between objects were a part, could be of a wholly abstract nature and thus a system of equations which were merely a mathematical method and thus non-technical. The claimed "graphical link representations" related to the state of the simulation model, rather than to the state of the claimed simulation apparatus, and thus constituted presentations of information and were therefore also non-technical; see T. 528/07.

In T. 163/85 (OJ 1990, 379), regarding a colour television signal characterised by technical features of the system in which it occurred, the board considered it appropriate to distinguish between two kinds of information when discussing its presentation; according to this distinction, a TV system solely characterised by the information per se, e.g. moving pictures modulated on a standard TV signal, might fall under the exclusion of Art. 52(2)(d) and (3) EPC 1973, but not a TV signal defined in terms which inherently comprised the technical features of the TV system in which it occurred; as the list of exclusions from patentability set out in Art. 52(2) EPC 1973 (in conjunction with Art. 52(3) EPC 1973) was not exhaustive in view of the phrase "in particular", the exclusion might arguably be generalised to subject-matter which was essentially abstract in character, non-physical and therefore not characterised by technical features within the meaning of R. 29(1) EPC 1973.

In decision T. 1143/06 the board noted that a non-technical claim feature is a feature which does not interact with the technical features to produce a technical effect. According to the

jurisprudence of the boards of appeal such a feature cannot establish novelty and inventive step (T. 154/04, OJ 2008, 46, point 15 of the Reasons). Since the invention was concerned with the visualisation of data files Art. 52(2)(d) EPC was obviously relevant. If the new features of a claim concern the presentation of information itself (rather than its concrete implementation) a patent can only be granted if they also produce a technical effect. If they do not they cannot contribute to an inventive step. One example of such a case was T. 125/04 concerning a new kind of vector diagram. The deciding board stated that "in general, the task of designing diagrams is non-technical. This is so even if the diagrams arguably convey information in a way which a viewer may intuitively regard as particularly appealing, lucid or logical" (Catchword). Another example was decision T. 619/98, in which it was held that an action performed by a user in response to a message in the form of questions or suggestions concerning the technical functioning of an apparatus did not render the form of the information technical.

2.6.1 User Interfaces

User interfaces, in particular graphical user interfaces (GUIs), comprise features of presenting information and receiving input in response as part of human-computer interaction. Features defining user input are more likely to have a technical character than those solely concerning data output and display, because input requires compatibility with the predetermined protocol of a machine, whereas output may be largely dictated by the subjective preferences of a user (Guidelines G-II, 3.7.1 – March 2022 version).

There is well-established case law which considers a graphical user interfaces layout (GUI) as such to be non-technical, being a "presentation of information" (Art. 52(2)(d) EPC) (see T. 1143/06; T. 1741/08).

The issues of GUI layout and presentation of information in the assessment of inventive step is analysed in detail in the chapter I.D.9.2.10 "Assessment of features relating to a presentation of information".

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1. Introduction

Art. 53 EPC defines three exceptions to patentability: (a) inventions the commercial exploitation of which would be contrary to 'ordre public' or morality; (b) plant varieties or animal species or essentially biological processes for the production of plants or animals; this does not apply to microbiological processes or the products thereof; (c) methods for treatment of the human or animal body by surgery or therapy and diagnostic methods practised on the human or animal body; this does not apply to products, in particular substances or compositions, for use in any of these methods.

1.1. Amendments made to Article 53 EPC as part of the EPC 2000 revision

As part of the EPC 2000 revision, several amendments were made to Art. 53 EPC. However, these are unlikely to affect the EPO's practice (see OJ SE 4/2007): Art. 53(a) EPC was brought into line with Art. 27(2) TRIPS and Art. 6(1) of Directive 98/44/EC on the legal protection of biological inventions ("Biotech Directive"). In